

The thirteenth affirmative defense states “the plaintiff acted with full knowledge of the probabilities and possibilities of danger” and “invite[d] injury and assumed any and all risks to be reasonably contemplated as incident to [her] said actions and positions.”

As a general rule, persons have a duty to use due care to avoid injury to others, and may be held liable if their careless conduct injures another person. (*Knight v. Jewett* (1992) 3 Cal.4th 296, 315 [citing Civ. Code, § 1714].) The doctrine of primary assumption arises “where, by virtue of the nature of the activity and the parties’ relationship to the activity, the defendant owes no legal duty to protect the plaintiff from the particular risk of harm that caused the injury.” (*Knight v. Jewett* (1992) 3 Cal.4th 296, 314-315.)

Here, the FAA alleges no facts to support the defense, only conclusory statements which are insufficient to overcome demurrer.

As such, the demurrer to the thirteen affirmative defense is SUSTAINED.

21st A/D (intervening and superseding cause)

The twenty-first affirmative defense states that “the conduct or actions of third parties acted as intervening and superseding forces, thereby cutting off any potential liability on the part of this answering defendant.”

An intervening cause is an independent force that operates after the defendant’s negligent conduct and contributes to the plaintiff’s injuries. (*Ash v. North American Title Co.* (1999) 74 Cal.App.4th 1214, 1223.) An intervening cause becomes a superseding cause only when both the intervening act and the results of the act are unforeseeable. (*Ibid.*) A superseding cause breaks the causal chain between the defendant’s conduct and the plaintiff’s injuries, thereby relieving the defendant from tort liability. (*Ibid.*)

Here, although the FAC alleges that other defendants had prior notice and knowledge of the hazards existing at the

property and should have warned about or corrected the conditions (see, e.g., FAC ¶ 18), Defendant Brightview's FAA generally denies that allegation. The FAA alleges no facts to constitute the defense, only conclusory statements which are insufficient to overcome demurrer.

As such, the demurrer to the twenty-first affirmative defense is SUSTAINED.

24th A/D (standing)

The twenty-fourth affirmative action alleges that "plaintiff does not have standing to assert the causes of action in plaintiff's First Amended Complaint against this answering defendant because co-defendants and cross-defendants allowed for a potential dangerous condition to emerge when, without providing this answering defendant with proper notice, failed to remediate any alleged build up of water and grass clippings that Plaintiff should have noticed before she claims she slipped and fell due to her own negligence."

Code of Civil Procedure section 367 provides, "Every action must be prosecuted in the name of the real party in interest, except as otherwise provided by statute." "One who invokes the judicial process does not have 'standing' if he . . . does not have a real interest in the ultimate adjudication because the actor has neither suffered nor is about to suffer any injury of sufficient magnitude reasonably to assure that all of the relevant facts and issues will be adequately presented." (*California Water & Telephone Co. v. County of Los Angeles* (1967) 253 Cal.App.2d 16, 22–23.)

Here, the FAA concedes Plaintiff allegedly slipped and fell, sustaining injuries (see, e.g., FAA at 6:23-24, 7:18-24), supporting her standing to pursue claims based on the incident.

As such, the demurrer to the twenty-fourth affirmative defense is SUSTAINED.

15 days leave to granted to correct the deficiencies noted.